

1.

CASE #	CASE NAME	HEARING NAME
CVME2606892	RUZICH vs AVILA	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

The Court grants, in part, the preliminary injunction, to the extent the parties stipulate to relief; specifically, that Defendant shall not sell, transfer, dispose of, or relocate the horses Tissy Fit (“Tissy”) and So Be It A Playboy (“Player”) outside Riverside County during the pendency of this action. The Court DENIES as to the remainder of the motion without prejudice to Plaintiff refiling after the hearing on the motion for leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500057	CROSSWHITE vs KIMBERLY CORONADO BADGE # 2012	MOTION TO OVERTURN DEMURRER

Tentative Ruling:

The Court dismissed this matter, with prejudice, following its order sustaining Defendants’ demurrer to the SAC. “A dismissal terminates an action. ... The dismissal of an entire action deprives the court of subject matter jurisdiction of the matter, as well as of personal jurisdiction over the parties.” (*Estate of Garrett* (2008) 159 Cal.App.4th 831 [citation omitted].) Accordingly, the court lacks jurisdiction to rule on the present motion.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500585	CASTRO vs TD BANK, N.A.	MOTION TO DISMISS COMPLAINT

Tentative Ruling:

The Court **GRANTS** the Motion to Dismiss Complaint.

On February 11, 2025, Plaintiff filed a Complaint against Defendants TD Bank, N.A. (“TD Bank”) and its CEO, Bharat Masrani (“Masrani”), State Farm General Insurance Company (“State Farm”), Austen Diffenderfer, and Nicole Arnold (together with State Farm, “State Farm Defendants”), alleging causes of action for: (1) breach of contract; (2) breach of fiduciary duties; (3) securities and commodities fraud; (4) deprivation of rights secured by the Constitution under color of law; (5) conspiracy against rights secured by the Constitution; (6) the Rosenthal Fair Debt Collection

Practices Act; (7) defamation; (8) common counts; and (9) statutory counts, and sought injunctive relief.

On December 19, 2025, the Court granted State Farm Defendants' demurrer as to the entire Complaint and each cause of action and granted Plaintiff 10 days leave to amend.

On June 16, 2026, the Court denied State Farm Defendants' ex parte application to dismiss the Complaint against them, as there was no finding of emergency, exigency, or risk of irreparable harm.

As of August 11, 2026, no amended complaint appears to have been filed.

State Farm Defendants now move to dismiss the Complaint against them due to Plaintiff's failure to timely amend the Complaint.

In opposition, Plaintiff contends that she was not served with State Farm Defendants' motion to dismiss, but only obtained a copy from the Court clerk and case register. Plaintiff further contends that State Farm Defendants failed to meet and confer or serve the motion 45 days before the hearing, as required by C.C.P. § 583.410-583.430. Plaintiff then argues the merits of the underlying case.

In reply, State Farm Defendants assert that they properly served Plaintiff with a copy of the motion by email and mail. State Farm Defendants then contend that Plaintiff waived her arguments regarding improper service because she opposed the motion on its merits.

Analysis

I. Procedural Arguments

Plaintiff argues that the motion is procedurally defective because State Farm Defendants failed to meet and confer or serve the motion 45 days before hearing, in violation of California Rules of Court, Rules 3.724 and 3.1342.

Rule 3.724 requires the parties to meet and confer 30 days before a case management conference about issues set forth in Rule 3.727, including whether the pleadings may be amended, and any other matters that should be considered by the court or addressed in its case management order. (C.R.C., Rule 3.727(3) and (20).) However, Plaintiff has a documented history of refusing to meet and confer with counsel. Specifically, after the Court ordered the parties to meet and confer on State Farm Defendants' demurrer, counsel attests that Plaintiff failed to answer any phone calls or return any messages, failed to respond to any emails, and returned mail to counsel's office as "return to sender." (Gargalis Decl., ¶ 4.) Further, State Farm Defendants' Case Management Statement, filed July 20, 2026, states that "Plaintiff also

refuses to communicate with Defendant's counsel." (State Farm Defendants' CMS, dated July 20, 2026.) Accordingly, State Farm Defendants has substantially complied with meet and confer requirements.

As for timeliness, Rule 3.1342 requires that a party seeking dismissal of a case for untimely prosecution under C.C.P. § 583.410-583.430 must serve and file a notice of motion at least 45 days before the date set for the hearing of the motion. However, State Farm Defendants do not move to dismiss for failure to timely prosecute under C.C.P. § 583.410-583.430, but rather for failure to timely amend after its demurrer was sustained under C.C.P. § 581(f)(2). C.C.P. § 1005(b) provides that moving papers for noticed motions need only be served 16 court days prior to the hearing. Nevertheless, the Proof of Service attached to State Farm Defendants' motion shows that the motion was served to Plaintiff via e-mail and U.S. Mail on June 19, 2026. Accordingly, State Farm Defendants served its motion 56 days prior to the scheduled hearing date of August 14, 2026. As such, State Farm Defendants' motion is timely.

Lastly, to the extent that Plaintiff argues she was never served with the motion, Plaintiff has opposed the motion on its merits and therefore waived any objection to defective service. (*See Chapman v. Gipson* (1951) 103 Cal.App.2d 585, 587 ["Regardless of any defect in the service, the timeliness of the notice was waived by the appellant, for his counsel appeared and participated at the hearing of the motion...and contested" the motion].)

II. Merits

State Farm Defendants brings this motion under C.C.P. § 581(f)(2), which states: "The court may dismiss the complaint as to that defendant when... after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal."

"Under section 581, subdivision (f)(2), if a 'demurrer was sustained as to all causes of action against one of several codefendants, and the time to amend has expired, that defendant may obtain a dismissal.' [Citation.] 'The phrase "may dismiss" means discretionary dismissal.' (*Cano v. Glover* (2006) 143 Cal.App.4th 326, 329.) However, if a court exercises discretion to dismiss, it must do so with prejudice. (*Id.* at pp. 329–330.)" (*Haidet v. Del Mar Woods Homeowners Assn.* (2024) 106 Cal.App.5th 530, 536.) The dismissal is with prejudice because "[t]he failure to amend ... is an admission that plaintiff has stated the case as strongly as he can and there are no facts that could be alleged to cure the defect." (*Cano, supra*, 143 Cal.App.4th at 329-330.)

Here, the Court sustained State Farm Defendants' demurrer as to each cause of action in the Complaint on December 19, 2025, and granted 10 days leave to amend. State Farm Defendants filed a Notice of Ruling on January 27, 2026. Accordingly, Plaintiff's time to amend the Complaint expired on February 6, 2026 (or February 11, 2026 for service by mail). As of August 11, 2026, Plaintiff has failed to file an amended complaint against State Farm Defendants. Although Plaintiff's opposition raises

arguments regarding alleged procedural deficiencies with this motion, Plaintiff does not address why she has failed to file an amended complaint despite being ordered to do so.

Accordingly, the Court **GRANTS** the motion to dismiss the Complaint against State Farm Defendants, with prejudice.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501912	SKELLY vs GARAGE INNOVATIONS, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR DANIEL MILLIS

Tentative Ruling:

Moot. Counsel substituted out and was replaced by new counsel on July 6, 2026.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2604038	MORTADA vs VASQUEZ HERNANDEZ	MOTION FOR CHANGE OF VENUE

Tentative Ruling:

The Court **GRANTS** the Motion for Change of Venue to Orange County. The Court sets a control date status conference of October 29, 2026, at 8:30 a.m. in Department 10. If the matter is successfully transferred by that date, the hearing will come off calendar.